

**CHAPTER ii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Fraserburgh Harbour. A.D. 1930.
—
[19th December 1930.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament :

62 & 63
Vict. c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Fraserburgh Harbour Order Confirmation Act 1930.

Short title.

A.D. 1930.

SCHEDULE.

FRASERBURGH HARBOUR.

Provisional Order to amend the Fraserburgh Harbour Act 1878 with reference to the qualification of electors and persons to be elected Commissioners of the harbour of Fraserburgh and the quorums of committees of the Commissioners to revive the powers for the construction of and extend the time for the completion of works authorised in 1919 to authorise the Commissioners to levy increased rates and for other purposes.

WHEREAS by the Fraserburgh Harbour Act 1878 (hereinafter called "the Act of 1878") the then existing harbour of Fraserburgh was transferred to the Commissioners incorporated by that Act under the name of the Fraserburgh Harbour Commissioners (hereinafter called "the Commissioners") and the Commissioners were authorised by that Act to construct additional works and further powers were conferred upon the Commissioners by the Fraserburgh Harbour Acts 1878 to 1923 :

And whereas by the Act of 1878 as amended by the Fraserburgh Harbour Order 1891 the qualification of persons qualified to elect and to be elected Commissioners of the harbour of Fraserburgh in Class B—shipowners of Fraserburgh—was limited to every person residing or having his place of business within the burgh of Fraserburgh whose name shall on the first day of November immediately preceding the election appear in the books of the Custom House at Fraserburgh as owner or part owner of or in any vessel or vessels belonging to Fraserburgh :

And whereas the class of shipping frequenting the harbour of Fraserburgh has greatly altered since one thousand eight hundred and ninety-one and now includes numerous fishing vessels propelled by motor or other mechanical power the owners of which vessels do not appear in the books of the Custom House at Fraserburgh as registered shipowners and it is expedient that the owners of such vessels residing or having their place of

business within the burgh of Fraserburgh whose names appear in other registers kept at the said Custom House should be qualified to elect and to be elected Commissioners of the harbour of Fraserburgh as in this Order provided : A.D. 1930.
—

And whereas the work of the Commissioners has greatly increased in recent years and it is expedient for the purposes of facilitating the business of the Commissioners to reduce the quorums of committees of the Commissioners appointed in pursuance of the Act of 1878 as in this Order provided :

And whereas by the Fraserburgh Harbour (New Works) Order 1919 the Commissioners were authorised to construct the new works in that Order described and to acquire compulsorily the lands shown on the plans deposited with reference to that Order :

And whereas in consequence of the financial position of the Commissioners as a result of the war the Commissioners have been unable to complete the construction of the said works within the period limited by the said Order of 1919 and it is expedient that the powers for the construction of the said works and for the compulsory acquisition of lands in connection therewith should be revived and that the time limited for the completion of the said works and for the compulsory acquisition of the said lands should be extended as in this Order provided :

And whereas by the Act of 1878 the Commissioners were authorised to levy the rates tolls dues rents and charges in that Act mentioned and by the Fraserburgh Harbour Order 1884 the Fraserburgh Harbour Order 1891 the Fraserburgh Harbour Order 1894 the Fraserburgh Harbour Order 1905 and the Fraserburgh Harbour Order 1914 further powers were conferred on the Commissioners and the rates tolls dues rents and charges they are authorised to levy were altered :

And whereas by the Fraserburgh Harbour (Rates) Order 1919 the Commissioners were authorised to increase or decrease by two third parts certain of the rates in that Order mentioned but the said power to increase or decrease the said rates was limited to a period of ten years from the date of the passing of the Act confirming that Order unless and except so far as Parliament might thereafter otherwise allow :

A.D. 1930.
—

And whereas the said period of ten years expired on the nineteenth day of August one thousand nine hundred and twenty-nine but the financial position which rendered necessary the obtaining of the said powers conferred on the Commissioners by the said last-mentioned Order of 1919 continues and in order to enable the Commissioners to maintain their undertaking in a state of efficiency and to discharge their existing liabilities it is expedient that they should be authorised to increase the rates tolls dues rents and charges they are authorised to levy as in this Order provided :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

Short and
collective
titles.

1. This Order may be cited as the Fraserburgh Harbour Order 1930 and this Order and the Fraserburgh Harbour Acts 1878 to 1923 may be cited together as the Fraserburgh Harbour Acts 1878 to 1930.

Interpre-
tation.

2. In this Order the expression—

“ the burgh ” means the burgh of Fraserburgh in the county of Aberdeen ;

“ the Act of 1878 ” means the Fraserburgh Harbour Act 1878 ;

“ the Order of 1919 ” means the Fraserburgh Harbour (New Works) Order 1919 ;

“ the Commissioners ” means the Fraserburgh Harbour Commissioners.

Qualifica-
tion of
electors.

3. The persons qualified to be electors and to be elected as Commissioners in Class B—shipowners of Fraserburgh—referred to in section 20 (Qualification of electors) of the Act of 1878 shall include every person residing or having his place of business within the burgh whose name shall on the first day of November immediately preceding the election appear in the registers kept at the Custom House at Fraserburgh under Part IV of the Merchant Shipping Act 1894 (in addition to every person whose name appears in the registers kept under

Part I of the said Act of 1894) as owner or part owner of or in any vessel or vessels propelled by steam motor or other mechanical power belonging to Fraserburgh. A.D. 1930.
—

4. The Act of 1878 shall be read and have effect as if the following section were substituted for section 22 (List of owners of shipping to be prepared preparatory to making up register) thereof:— Amend-
ment of
section 22
of Act of
1878.

“ For the purpose of making up the register of electors qualified in respect of the ownership of shipping the clerk shall on or before the tenth day of November in each year apply to the registrar of shipping at the Custom House Fraserburgh for a list of—

(a) every person residing or having his place of business within the burgh whose name shall appear in the registers kept at the said Custom House under Part I of the Merchant Shipping Act 1894; and

(b) every person residing or having his place of business within the burgh whose name shall appear in the registers kept at the said Custom House under Part IV of the Merchant Shipping Act 1894 as owner or part owner of or in any vessel or vessels propelled by steam motor or other mechanical power belonging to Fraserburgh;

on the first day of November immediately preceding the election with the respective names of the vessels in respect of which such persons are registered and the number of shares in each of such vessels held by such persons and such registrar shall within fourteen days after receiving such application as aforesaid supply such list on payment of any reasonable expense which may be incurred in making up the same.”

5. Section 48 (Power to appoint committees) and section 50 (Quorum of committees) of the Act of 1878 shall be read and have effect as if the word “ three ” were substituted for the words “ half of the whole number ” and for the words “ one half ” where those words appear in those sections respectively. Quorum of
committees.

A.D. 1930.

—
Revival of
powers and
extension
of time
for works
and lands
authorised
in 1919.

6. The powers granted to the Commissioners by the Order of 1919 for the construction of the works by that Order authorised and for the compulsory purchase of lands for the purposes of that Order are hereby revived and may be exercised by the Commissioners in accordance with the provisions of that Order and the time limited by section 8 (Period for compulsory purchase of lands) of the Order of 1919 is hereby extended until the twentieth day of November one thousand nine hundred and thirty-three and the time limited by section 9 (Period for completion of works) of the Order of 1919 for the completion of the works by that Order authorised is hereby extended until the twentieth day of November one thousand nine hundred and thirty-six and on the expiration of that period the powers for completing such works shall cease except as to so much thereof as shall then be completed.

Commis-
sioners may
alter rates.

7.—(1) Subsections (1) and (3) of section 80 (Commissioners may alter rates in schedules) of the Act of 1878 shall be read and have effect as if the words “two third parts” were substituted for the words “one third part” where those words appear in those subsections. Provided that unless and except so far as Parliament may hereafter otherwise allow the provisions of this subsection shall cease to have effect on the expiration of ten years from the passing of the Act confirming this Order.

(2) Section 6 (Commissioners may alter rates) of the Fraserburgh Harbour (Rates) Order 1919 is hereby repealed.

Annual
accounts to
be sent to
Ministry of
Transport.

8. Section 9 (Annual account to be sent to Board of Trade) of the Fraserburgh Harbour Order 1884 shall be and is hereby repealed and the following provisions shall apply and have effect in lieu thereof:—

- (1) The Commissioners shall within two months after the date to which their annual accounts and balance sheet are made up send a copy of the same to the Minister of Transport and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Commissioners and any and every such account:

- (2) The Commissioners shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with the foregoing provisions : A.D. 1930.
—
- (3) The accounts of the Commissioners referred to in this section and in section 50 of the Harbours Docks and Piers Clauses Act 1847 respectively shall be made up to the end of the thirty-first day of October in each year.

9. All the costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise incurred in relation thereto shall be paid by the Commissioners out of the revenues of their undertaking. Costs of Order.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.